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Title 33 — Navigation and Navigable Waters

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Subchapter P — Ports and Waterways Safety

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PART 169—SHIP REPORTING SYSTEMS

Authority: 46 U.S.C. 70005, 70034, 70115, Department of Homeland Security Delegation No. 0170.1.

Source: USCG-1999-5525, 64 FR 29234, June 1, 1999, unless otherwise noted.

Subpart A—General

§ 169.1 What is the purpose of this part?

This subpart prescribes the requirements for mandatory ship reporting systems. Ship reporting systems are used to provide, gather, or exchange information through radio reports. The information is used to provide data for many purposes including, but not limited to: navigation safety, maritime security and domain awareness, environmental protection, vessel traffic services, search and rescue, weather forecasting and prevention of marine pollution.

Note to § 169.1: For ship reporting system requirements not established by the Coast Guard, see 50 CFR part 404.

[USCG-1999-5525, 64 FR 29234, June 1, 1999, as amended by USCG-2005-22612, 73 FR 23318, Apr. 29, 2008; USCG-2009-0416, 74 FR 27442, June 10, 2009]

§ 169.5 How are terms used in this part defined?

As used in this part—

Administration means the Government of the State whose flag the ship is entitled to fly.

Cargo ship means any ship which is not a passenger ship.

Flag Administration means the Government of a State whose flag the ship is entitled to fly.

Gross tonnage means tonnage as defined under the International Convention on Tonnage Measurement of Ships, 1969 (Incorporated by reference, see § 169.15).

Gross tons means vessel tonnage measured in accordance with the method utilized by the flag state administration of that vessel.

High speed craft means a craft that is operable on or above the water and is capable of a maximum speed equal to or exceeding $V = 3.7 \times \text{displ}^{1/667}$, where “V” is the maximum speed and “displ” is the vessel displacement corresponding to the design waterline in cubic meters.

High speed passenger craft means a high speed craft carrying more than 12 passengers.

International voyage means a voyage from a country to which the present International Convention for the Safety of Life at Sea (SOLAS), 1974 applies to a port outside such country, or conversely. For U.S. ships, such voyages will be considered to originate at a port in the United States, regardless of when the voyage actually began. Such voyages for U.S. ships will continue until the ship returns to the United States from its last foreign port.

Long range identification and tracking (LRIT) information or position report means a report containing the following information:

- (1) The identity of the ship;
- (2) The position of the ship (latitude and longitude); and
- (3) The date and time of the position provided.

LRIT Data Center means a center established by a SOLAS Contracting Government or a group of Contracting Governments, or in the case of the International Data Center, by IMO, to request, receive, process, and archive LRIT information. An LRIT Data Center may be National, Regional, Co-operative or International.

Mandatory ship reporting system means a ship reporting system that requires the participation of specified vessels or classes of vessels, and that is established by a government or governments after adoption of a proposed system by the International Maritime Organization (IMO) as complying with all requirements of regulation V/8-1 of the International Convention for the Safety of Life at Sea, 1974, as amended (SOLAS), except paragraph (e) thereof.

Mobile offshore drilling unit means a self-propelled vessel capable of engaging in drilling operations for the exploration or exploitation of subsea resources.

Passenger ship means a ship that carries more than 12 passengers.

Self-propelled ships means ships propelled by mechanical means.

Shore-based authority means the government appointed office or offices that will receive the reports made by ships entering each of the mandatory ship reporting systems. The office or offices will be responsible for the management and coordination of the system, interaction with participating ships, and the safe and effective operation of the system. Such an authority may or may not be an authority in charge of a vessel traffic service.

United States means the States of the United States, the District of Columbia, Guam, Puerto Rico, the Virgin Islands, American Samoa, the Northern Mariana Islands, and any other territory or possession of the United States.

[USCG-1999-5525, 66 FR 58070, Nov. 20, 2001, as amended by USCG-2005-22612, 73 FR 23318, Apr. 29, 2008]

§ 169.10 What geographic coordinates are used?

Geographic coordinates expressed in terms of latitude or longitude, or both, are not intended for plotting on maps or charts where the referenced horizontal datum is the North American Datum of 1983 (NAD 83), unless such geographic coordinates are expressly labeled NAD 83. Geographic coordinates without the NAD 83 reference may be plotted on maps or charts referenced to NAD 83 only after application of the appropriate corrections that are published on the particular map or chart being used.

§ 169.15 Incorporation by reference: Where can I get a copy of the publications mentioned in this part?

- (a) Certain material is incorporated by reference into this part with the approval of the Director of the Federal Register under 5 U.S.C. 552(a) and 1 CFR part 51. To enforce any edition other than that specified in this section, the Coast Guard must publish notice of change in the FEDERAL REGISTER and the material must be available to the public. All approved material is available for inspection at the National Archives and Records Administration (NARA). For information on the availability of this material at NARA, call 202-741-6030 or go to http://www.archives.gov/federal_register/code_of_federal_regulations/

[ibr_locations.html](#). Also, it is available for inspection at Coast Guard Headquarters. Contact Commandant (CG-NAV), Attn: Office of Navigation Systems, 2703 Martin Luther King Jr. Avenue SE., Stop 7418, Washington, DC 20593-7418, and is available from the sources indicated in this section.

(b) **International Electrotechnical Commission (IEC) Bureau Central de la Commission Electrotechnique Internationale**, 3 rue de Varembe, P.O. Box 131, 1211 Geneva 20, Switzerland.

(1) IEC 60945, Fourth edition 2002-08, Maritime navigation and radiocommunication equipment and systems—General requirements—Methods of testing and required test results, incorporation by reference approved for § 169.215.

(2) [Reserved]

(c) **International Maritime Organization (IMO)**, 4 Albert Embankment, London SE1 7SR, U.K.

(1) IMO Resolution MSC.202(81), adopted on May 19, 2006, Adoption of Amendments to the International Convention for the Safety of Life at Sea, 1974, as Amended, incorporation by reference approved for § 169.240.

(2) IMO Resolution MSC.210(81), adopted on May 19, 2006, Performance Standards and Functional Requirements for the Long-Range Identification and Tracking of Ships, incorporation by reference approved for §§ 169.215 and 169.240.

(3) IMO Resolution MSC.254(83), adopted on October 12, 2007, Adoption of Amendments to the Performance Standards and Functional Requirements for the Long-Range Identification and Tracking of Ships, incorporation by reference approved for §§ 169.215 and 169.240.

(4) IMO Resolution A.694(17), adopted on November 6, 1991, General Requirements for Shipborne Radio Equipment Forming Part of the Global Maritime Distress and Safety System (GMDSS) and for Electronic Navigational Aids, incorporation by reference approved for § 165.215.

(5) International Convention on Tonnage Measurement of Ships, 1969, incorporation by reference approved for § 169.5.

[USCG-2005-22612, 73 FR 23319, Apr. 29, 2008, as amended by USCG-2010-0351, 75 FR 36287, June 25, 2010; USCG-2011-0257, 76 FR 31838, June 2, 2011; USCG-2014-0410, 79 FR 38448, July 7, 2014]

Subpart B—Establishment of Two Mandatory Ship Reporting Systems for the Protection of Northern Right Whales

§ 169.100 What mandatory ship reporting systems are established by this subpart?

This subpart prescribes requirements for the establishment and maintenance of two mandatory ship reporting systems for the protection of the endangered northern right whale (also known as the North Atlantic right whale). These two systems are designated for certain areas of the East Coast of the United States. One system is located in the northeast and is identified as WHALESNORTH. The other system is located in the southeast and is identified as WHALESSOUTH.

Note to § 169.100: 50 CFR 224.103(c) contains requirements and procedures concerning northern right whale approach limitations and avoidance procedures.

[USCG-1999-5525, 64 FR 29234, June 1, 1999, as amended by 66 FR 58070, Nov. 20, 2001]

§ 169.102 Who is the shore-based authority?

The U.S. Coast Guard is the shore-based authority for these mandatory ship reporting systems.

§ 169.105 Where is the northeastern reporting system located?

Geographical boundaries of the northeastern area include the waters of Cape Cod Bay, Massachusetts Bay, and the Great South Channel east and southeast of Massachusetts. The coordinates (NAD 83) of the area are as follows: from a point on Cape Ann, Massachusetts at 42°39' N, 70°37' W; then northeast to 42°45' N, 70°13' W; then southeast to 42°10' N, 68°31' W; then south to 41°00' N, 68°31' W; then west to 41°00' N, 69°17' W; then northeast to 42°05' N, 70°02' W, then west to 42°04' N, 70°10' W; and then along the Massachusetts shoreline of Cape Cod Bay and Massachusetts Bay back to the point on Cape Anne at 42°39' N, 70°37' W.

§ 169.110 When is the northeastern reporting system in effect?

The mandatory ship reporting system in the northeastern United States operates year-round.

§ 169.115 Where is the southeastern reporting system located?

Geographical boundaries of the southeastern area include coastal waters within about 25 nautical miles (45 kilometer) along a 90-nautical mile (170-kilometer) stretch of the Atlantic seaboard in Florida and Georgia. The area coordinates (NAD 83) extends from the shoreline east to longitude 80°51.6' W with the southern and northern boundaries at latitude 30°00' N and 31°27' N, respectively.

§ 169.120 When is the southeastern reporting system in effect?

The mandatory ship reporting system in the southeastern United States operates during the period beginning on November 15 each year through April 16 of the following year.

[USCG-1999-5525, 66 FR 58070, Nov. 20, 2001]

§ 169.125 What classes of ships are required to make reports?

Each self-propelled ship of 300 gross tons or greater must participate in the reporting systems, except government ships exempted from reporting by regulation V/8-1(c) of SOLAS. However, exempt ships are encouraged to participate in the reporting systems.

[USCG-1999-5525, 66 FR 58070, Nov. 20, 2001]

§ 169.130 When are ships required to make reports?

Participating ships must report to the shore-based authority upon entering the area covered by a reporting system. Additional reports are not necessary for movements made within a system or for ships exiting a system.

§ 169.135 How must the reports be made?

- (a) A ship equipped with INMARSAT C must report in IMO standard format as provided in § 169.140 in table 169.140.

- (b) A ship not equipped with INMARSAT C must report to the Coast Guard using other means, listed below in order of precedence—
- (1) By email to rightwhale.msr@noaa.gov;
 - (2) HF voice communication; or
 - (3) VHF voice communications.
- (c) HF reports made directly to the Coast Guard's Communications Command (COMMCOM) in Chesapeake, VA, or VHF reports made to Coast Guard shore units, should only be made by ships not equipped with INMARSAT C. Ships in this category must provide all the required information to the Coast Guard watchstander.

[USCG-1999-5525, 64 FR 29234, June 1, 1999, as amended by 66 FR 58070, Nov. 20, 2001; USCG-2020-0304, 85 FR 58281, Sept. 18, 2020]

§ 169.140 What information must be included in the report?

Each ship report made to the shore-based authority must follow the standard reporting and format requirements listed in this section in table 169.140. Current email addresses and telex numbers are published annually in the US Coast Pilot.

TABLE 169.140—REQUIREMENTS FOR SHIP REPORTS

Telegraphy	Function	Information required
Name of system	System identifier	Ship reporting system WHALESNORTH or WHALESSOUTH.
M	INMARSAT Number	Vessel INMARSAT number.
A	Ship	The name, call sign or ship station identity, IMO number, and flag of the vessel.
B	Date and time of event	A 6-digit group giving day of month (first two digits), hours and minutes (last four digits).
E	True course	A 3-digit group indicating true course.
F	Speed in knots and tenths of knots	A 3-digit group.
H	Date, time and point of entry into system	Entry time expressed as in (B) and entry position expressed as—(1) a 4-digit group giving latitude in degrees and minutes suffixed with N(north) or S (south) and a 5-digit group giving longitude in degrees and minutes suffixed with E (east) or W (west); or (2) True bearing (first 3 digits) and distance (state distance) in nautical miles from a clearly

Telegraphy	Function	Information required
I	Destination and expected time of arrival	identified landmark (state landmark). Name of port and date time group expressed as in (B).
L	Route information	Intended track.

[USCG-1999-5525, 66 FR 58070, Nov. 20, 2001]

Subpart C—Transmission of Long Range Identification and Tracking Information

Source: USCG-2005-22612, 73 FR 23319, Apr. 29, 2008, unless otherwise noted.

§ 169.200 What is the purpose of this subpart?

This subpart implements Regulation 19-1 of SOLAS Chapter V (SOLAS V/19-1) and requires certain ships engaged on an international voyage to transmit vessel identification and position information electronically. This requirement enables the Coast Guard to obtain long range identification and tracking (LRIT) information and thus heightens our overall maritime domain awareness, enhances our search and rescue operations, and increases our ability to detect anomalies and deter transportation security incidents.

§ 169.205 What types of ships are required to transmit LRIT information (position reports)?

The following ships, while engaged on an international voyage, are required to transmit position reports:

- (a) A passenger ship, including high speed passenger craft.
- (b) A cargo ship, including high speed craft, of 300 gross tonnage or more.
- (c) A mobile offshore drilling unit while underway and not engaged in drilling operations.

§ 169.210 Where during its international voyage must a ship transmit position reports?

The requirements for the transmission of position reports, imposed by the United States, vary depending on the relationship of the United States to a ship identified in § 169.205.

- (a) **Flag State relationship.** A U.S. flag ship engaged on an international voyage must transmit position reports wherever they are located.
- (b) **Port State relationship.** A foreign flag ship engaged on an international voyage must transmit position reports after the ship has announced its intention to enter a U.S. port or place under requirements in 33 CFR part 160, subpart C.

- (c) **Coastal State relationship.** A foreign flag ship engaged on an international voyage must transmit position reports when the ship is within 1,000 nautical miles of the baseline of the United States, unless their Flag Administration, under authority of SOLAS V/19-1.9.1, has directed them not to do so.

§ 169.215 How must a ship transmit position reports?

A ship must transmit position reports using Long Range Identification and Tracking (LRIT) equipment that has been type-approved by their Administration. To be type-approved by the Coast Guard, LRIT equipment must meet the requirements of IMO Resolutions A.694(17), MSC.210(81), and MSC.254(83), and IEC standard IEC 60945 (Incorporated by reference, see § 169.15).

§ 169.220 When must a ship be fitted with LRIT equipment?

A ship identified in § 169.205 must be equipped with LRIT equipment—

- (a) Before getting underway, if the ship is constructed on or after December 31, 2008.
- (b) By the first survey of the radio installation after December 31, 2008, if the ship is—
 - (1) Constructed before December 31, 2008, and
 - (2) Operates within—
 - (i) One hundred (100) nautical miles of the United States baseline, or
 - (ii) Range of an Inmarsat geostationary satellite, or other Application Service Provider recognized by the Administration, with which continuous alerting is available.
- (c) By the first survey of the radio installation after July 1, 2009, if the ship is—
 - (1) Constructed before December 31, 2008, and
 - (2) Operates within the area or range specified in paragraph (b)(2) of this section as well as outside the range of an Inmarsat geostationary satellite with which continuous alerting is available. While operating in the area or range specified in paragraph (b)(2) of this section, however, a ship must install LRIT equipment by the first survey of the radio installation after December 31, 2008.

§ 169.225 Which Application Service Providers may a ship use?

A ship may use an Application Service Provider (ASP) recognized by its Administration. Some Communication Service Providers may also serve as an ASP.

§ 169.230 How often must a ship transmit position reports?

A ship's LRIT equipment must transmit position reports at 6-hour intervals unless a more frequent interval is requested remotely by an LRIT Data Center.

§ 169.235 What exemptions are there from reporting?

A ship is exempt from this subpart if it is—

- (a) Fitted with an operating automatic identification system (AIS), under 33 CFR 164.46, and operates only within 20 nautical miles of the United States baseline,

- (b) A warship, naval auxiliaries or other ship owned or operated by a SOLAS Contracting Government and used only on Government non-commercial service, or
- (c) A ship solely navigating the Great Lakes of North America and their connecting and tributary waters as far east as the lower exit of the St. Lambert Lock at Montreal in the Province of Quebec, Canada.

§ 169.240 When may LRIT equipment be switched off?

A ship engaged on an international voyage may switch off its LRIT equipment only when it is permitted by its Flag Administration, in circumstances detailed in SOLAS V/19-1.7, or in paragraph 4.4.1, of resolution MSC.210(81), as amended by resolution MSC.254(83) (Incorporated by reference, see § 169.15).

§ 169.245 What must a ship master do if LRIT equipment is switched off or fails to operate?

- (a) If a ship's LRIT equipment is switched off or fails to operate, the ship's master must inform his or her Flag Administration without undue delay.
- (b) The master must also make an entry in the ship's logbook that states—
 - (1) His or her reason for switching the LRIT equipment off, or an entry that the equipment has failed to operate, and
 - (2) The period during which the LRIT equipment was switched off or non-operational.

Note to § 169.245: For U.S. vessels, the U.S. Coast Guard serves as the Flag Administration for purposes of this section. All LRIT notifications for the U.S. Flag Administration, in addition to requests or questions about LRIT, should be communicated to the U.S. Coast Guard by e-mail addressed to LRIT@uscg.mil.